Households with Migrant or Seasonal Farmworkers	Number	Page
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Revision Date:
07/01/2022

Background:
Migrant and seasonal farmworker households (HH) are eligible to special income calculations if they meet specific destitute criteria for CalFresh purposes.

Purpose:
The following section shall be used to determine when migrant or seasonal farmworker HHs meet the destitute criteria therefore entitling them to special income calculations for the application month or first month of the certification period. No policy changes have been made. This section is being relocated to 63-252 and reformatted to remove information pertaining to boarders, which is now found in Section 63-225.

Policy:
At application and recertification all migrant or seasonal farmworker HH's are to be screened to see if they meet the destitute criteria. Destitute evaluations are limited solely to migrant or seasonal farmworker HHs, other types of HHs are not eligible to this evaluation. A migrant or seasonal farmworker HH meets the destitute criteria if its only income during the month of application is either:

- From a terminated source
- From a new source
- A combination of terminated and a new source

The sections below provide further details into the 3 criteria and if the HH meets any of the criteria, how to determine if they are eligible to Expedited Services (ES) and calculate the first month's benefits.

1. Income from a Terminated Source:

The table below provides guidance on how to determine if income is from a terminated source based on its payment frequency.

If income is received…	then the income will be considered as coming from a terminated source…
monthly, semi-monthly, bi-weekly, weekly, or daily,	if the HH will not receive any more payments from the source in the remaining days of the application month or during the month following the application.
annually, semi-annually, quarterly, or bi-monthly,	if the HH will not receive any more payments from the source in the remaining days of the application month or month in which the next payment would normally be received.

Example: Income not considered coming from a terminated source	
Scenario	A migrant farmworker applies for benefits on August 20. She reports that her job will be ending, and she will receive her last paycheck on August 27. She will not receive any more paychecks after the August 27.
Outcome	The income is not considered to be from a terminated source since she will receive one more check in the remaining days of the application month.

Example: Terminated source of income received weekly	
Scenario	A migrant farmworker applies for benefits on July 16 and reports that work with a local grower ended in early July and that he got his last weekly pay on July 15. He will not receive any more payments from this grower.
Outcome	The income is considered coming from a terminated source because he will not get any further income from the grower in July or August.

Example: Terminated source of income received quarterly	
Scenario	A migrant farmworker applies for benefits on January 15. He reported his job terminated and he was paid on a quarterly basis (e.g., January 1, April 1, July 1, and October 1). He reports receiving his last paycheck on January 1. He will not receive any more payments from this grower.
Outcome	The income is considered coming from a terminated source since the HH does not anticipate receiving a payment in April.

2. Income from a New Source:

The table below provides guidance on how to determine if income is from a new source based on its payment frequency.

If income is received…	then the income will be considered as coming from a new source…
monthly, semi-monthly, bi-weekly, weekly, or daily,	if income of more than $25 from that source was not received in the 30 days before the application.
annually, semi-annually, quarterly, or bi-monthly,	if income of more than $25 was not received within the last normal interval between payments.

Example: Income not considered coming from a new source	
Scenario	A migrant farmworker HH applies on September 5. The only income expected for the application month is pay from a job with a new grower. Work began on August 20, and she received her first check on September 1 in the amount of $65.
Outcome	The income is not considered to be from a new source because she received income of more than $25 from the new source within 30 days of the application.

Example: New source of income received monthly	
Scenario	A migrant farmworker applies on April 5. At application he reports he started working for a new grower on March 25. He will be paid weekly and received his first paycheck from the new grower on April 1 for $20, he will not get his next check until April 8.
Outcome	The income is considered to be from a new source because he did not receive income of more than $25 from the new grower in the 30 days prior to application.

Example: New source of income received quarterly	
Scenario	A migrant farmworker applies on January 5. He states he started a job with a new grower on December 1 and will be paid quarterly. He will receive his first paycheck

	on March 1.
Outcome	The income is considered to be from a new source because the HH has not received income of more than $25 from the new source from October to the date of application.

3. Income from a Terminated Source and a New Source:

Refer to the information in Sections 1 and 2 above for guidance on how to determine if income is from a terminated source and a new source.

Example: HH with income from a terminated and new source meeting destitute criteria	
Scenario	A migrant farmworker HH applying on July 10 is part of a crew that moved from one grower to another to harvest different crops. The HH received its last pay from the previous grower on July 8 and will not receive any more income from the grower. He will receive its first pay from the new grower on July 21.
Outcome	The HH meets destitute criteria, because its only income for the application month is from both new and terminated sources.

Note: A migrant farmworker's source of income/employer is the grower for whom the migrant is working for and not the crew chief. A migrant farmworker who travels with the same crew chief but moves from one grower to another shall be considered to have moved from a terminated income source to a new source. A migrant or seasonal farmworker who changes jobs but continues to work for the same employer shall be considered still receiving income from the same source.

4. Eligibility to ES for HHs Meeting the Destitute Criteria:

A migrant or seasonal farmworker HH is eligible to ES if it meets one of the criteria below and their liquid resources do not exceed $100.

- The HHs only source of income during the application month is received prior to the application date and is from a terminated source.

Example:	
Scenario	A migrant farmworker HH applies on June 10. The migrant farmworker reports he was working but his job terminated June 1. He received his last bi-weekly paycheck on June 5 for $600. He states he has no bank accounts and the only liquid resources he has is $80 cash on hand which is left over from the paycheck he received on June 5.
Outcome	The HH is eligible to ES because the only source of income in the application month was from a terminated source and received on June 5, which is prior to the application date. In addition, the HHs liquid resources are only $80 which is less than $100. For migrant or seasonal farmworkers, there is no limit as to how much they can earn prior to application to be eligible to ES, unlike all other types of HHs that must have monthly income of less than $150.

- The HHs only income for the month of application is from a new source and income of more than $25 from the new source will not be **received by the 10th calendar day** after the date of application.

Example:	
Scenario	A migrant farmworker HH applies on June 10. The migrant farmworker reports

	he started working June 1 and will receive his first monthly paycheck on June 25 in the amount of $500. He states he has no bank accounts and the only liquid resources he has is $80 cash on hand.
Outcome	The HH is eligible to ES. The income meets the criteria for income from a new source, the HH will not receive more than $25 from the new source within 10 days of the date of application.

- The HHs only income is from a terminated source prior to the date of application and no other income from the terminated source will be received in the application month. In addition, income from a new source will be received after the date of application, as long as income of more than $25 from the new source will not be **received by the 10th calendar day** after the date of application.

Note: The $25 maximum from the new source applies to the entire HH. If two people in the HH each received $20 from a new source within ten calendar days after the date of application, the HH does not meet destitute criteria since $40 exceeds $25.

5. Income Calculation at Intake and Recertification for HHs Meeting the Destitute Criteria:
HHs that have met the destitute criteria are eligible for special income calculations. The table below explains how the income is calculated at application and recertification.

If…	then…
at application, the HH has met the criteria of income from a terminated source,	the application month's benefits will be calculated by considering only income which is received between the first of the month and the date of application.
at application, the HH has met the criteria of income from a new source,	any income from the new source that is anticipated after the date of application shall be disregarded in the application months benefit calculation.
at recertification, the HH has met the criteria of income from a new source,	the income from a new source will be disregarded in the first month of the new certification period if income of more than $25 will not be received from the new source by the 10th calendar day after the date of the HH's normal issuance date.

Note: Subsequent month's benefits for the certification period will be calculated according to prospective budgeting and reasonably anticipated income procedures, refer to Section 63-282.

6. Treatment of Travel Advances Received by HHs Meeting the Destitute Criteria:
Some employers provide travel advances to cover the travel costs of new employees who must journey to the location of their new employment. Travel advances have no effect on the determination of destitute criteria. The payments are considered either a reimbursement or an advance on wages and should be treated accordingly.

If the travel advance is …	then …
considered a reimbursement,	the income is excluded per Section 63-224.
by written contract, an advance on wages that will be subtracted from wages later earned by the employee,	the wage advance will count as income per Section 63-222.

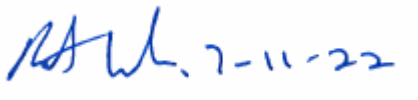
Example: Travel advance given as a reimbursement	
Scenario	HH applies on May 10. On May 1 he received a $50 travel check for travel expenses from his new employer. He will not receive his first regular paycheck until May 31, therefore the HH meets destitute criteria.
Outcome	Disregard both the May 31 paycheck and the travel expenses as income in the application month.

Example: Travel advance given as an advance on wages	
Scenario	HH applies on May 10 and received a $50 travel advance on May 1 but will not receive any other wages from the employer until May 30, therefore the HH meets destitute criteria.
Outcome	The May 30 payment shall be disregarded from the budget calculation for the month of application, but the wage advance received prior to the date of application will be counted as income.

References:
MPP 63-503.43, CFR 273.10(e)(3)

Sunset Date:
This policy will be reviewed for continuance on or by 07/31/2025

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services